



Terms of Service

Construction Services Agreement

Logix Build Pty Ltd

ABN 41 163 122 156 | ACN 163 122 156

NSW Builder Licence 278268C

Sydney, New South Wales, Australia

Effective Date: 13 May 2026

admin@logixbuild.com.au | logixbuild.com.au

1. Acceptance of Terms

By engaging Logix Build Pty Ltd (ABN 41 163 122 156) ("Logix Build", "we", "us", "our") to provide any construction, building, renovation, or related services, or by accessing and using our website at logixbuild.com.au (the "Website"), you ("Client", "you", "your") agree to be bound by these Terms of Service ("Terms"). If you do not agree with these Terms, you must not engage our services or use the Website.

These Terms apply to all residential and commercial construction services provided by Logix Build, including but not limited to custom home builds, renovations, extensions, commercial fitouts, heritage restorations, and any ancillary services. These Terms are to be read in conjunction with any project-specific contract, quotation, or scope of works document provided by Logix Build.

2. About Logix Build

Logix Build Pty Ltd is a licensed building company operating in the Sydney metropolitan area. We hold NSW Builder Licence number 278268C and have been operating since 2013. We provide premium residential and commercial construction services.

3. Services

3.1 Logix Build provides the following categories of services:

- Custom designer home construction
- Townhouse and duplex investment builds
- Granny flat construction
- Commercial retail and office fitouts
- Public and community facility construction
- Childcare centre construction
- Strata and common area upgrades
- Commercial extensions
- Heritage building restoration and construction

3.2 The specific scope, specifications, and deliverables for each project will be set out in a separate written quotation, contract, or scope of works document ("Project Agreement"). In the event of any inconsistency between these Terms and a Project Agreement, the Project Agreement prevails to the extent of the inconsistency.

4. Quotations and Pricing

4.1 All quotations provided by Logix Build are valid for thirty (30) days from the date of issue unless otherwise specified in writing.

4.2 Quotations are based on the information, plans, specifications, and site conditions known to Logix Build at the time of quoting. Any changes to scope, design, materials, or site conditions may result in price adjustments.

4.3 Unless otherwise stated, all prices are quoted in Australian dollars and are exclusive of GST. GST will be added at the applicable rate.

4.4 Logix Build reserves the right to adjust pricing where costs of materials, labour, or subcontractor services increase beyond our reasonable control after a quotation has been issued.

4.5 A quotation does not constitute an offer capable of acceptance. A binding contract is formed only upon execution of a Project Agreement by both parties.

5. Payment Terms

5.1 Payment schedules will be set out in the Project Agreement and may include progress payments aligned with construction stages (e.g., slab, frame, lock-up, fixing, completion) in accordance with applicable NSW legislation including the Home Building Act 1989 (NSW).

5.2 All invoices are due and payable within fourteen (14) days of the invoice date unless otherwise agreed in writing.

5.3 If any payment is not received by the due date, Logix Build reserves the right to:

- Charge interest on the outstanding amount at a rate of 2% per month, compounding monthly
- Suspend all works until payment is received in full
- Retain a lien over any materials on site
- Exercise any rights available under the Building and Construction Industry Security of Payment Act 1999 (NSW)
- Recover all costs of collection, including legal fees on a solicitor-client basis

5.4 The Client must not withhold, set off, or deduct any amount from payments due to Logix Build without our prior written consent.

6. Variations and Changes

6.1 Any variation to the scope of works must be agreed in writing by both parties before the variation work commences.

6.2 Logix Build will provide a written variation quotation detailing the cost and time impact of any proposed change. Work on the variation will not commence until the Client has approved the variation in writing.

6.3 Where a variation is requested by the Client and results in delay, the project timeline will be extended by a reasonable period.

6.4 Where unforeseen site conditions (including but not limited to contaminated soil, rock, concealed services, asbestos, or structural defects) require additional work, Logix Build will notify the Client and provide a variation quotation before proceeding.

7. Client Obligations

The Client must:

- Provide all necessary information, plans, approvals, and consents in a timely manner
- Obtain and maintain all required development approvals, council consents, and permits
- Ensure the site is accessible, safe, and free from hazards at the time works are scheduled to commence
- Not engage separate contractors to work on the site concurrently without Logix Build's prior written consent
- Make timely decisions and approvals when requested to avoid project delays
- Comply with all applicable laws, regulations, and planning instruments
- Pay all fees, charges, and levies required by any authority in connection with the works

8. Site Access and Conditions

8.1 The Client must provide Logix Build and its employees, agents, and subcontractors with unrestricted access to the site during normal working hours (Monday to Saturday, 7:00am to 5:00pm) and at such other times as may be reasonably required.

8.2 Logix Build is not responsible for any pre-existing site conditions, including but not limited to contamination, unstable soil, underground services, asbestos-containing materials, or structural defects not disclosed by the Client or identifiable through reasonable inspection.

8.3 If site conditions differ materially from those disclosed or reasonably anticipated, Logix Build may suspend works and issue a variation claim.

9. Work Health and Safety

9.1 Logix Build will comply with all applicable work health and safety legislation, including the Work Health and Safety Act 2011 (NSW) and associated regulations.

9.2 The Client must not interfere with, obstruct, or compromise any safety measures, barriers, signage, or procedures implemented by Logix Build on the site.

9.3 Logix Build reserves the right to refuse entry to the site to any person who does not comply with applicable WHS requirements, including wearing appropriate personal protective equipment.

10. Insurance

10.1 Logix Build maintains the following insurance policies:

- Public liability insurance
- Workers' compensation insurance
- Home building compensation fund cover (where required under the Home Building Act 1989 (NSW))

- Professional indemnity insurance
- Contract works (construction all risks) insurance

10.2 Certificates of currency are available upon request.

10.3 The Client is responsible for maintaining their own insurance over the property and its contents during construction, including any existing structures.

11. Defects and Warranty

11.1 Logix Build warrants that all works will be carried out in a proper and workmanlike manner, using good quality materials, and in accordance with the plans, specifications, and all applicable building codes, standards, and regulations.

11.2 Statutory warranty periods apply in accordance with the Home Building Act 1989 (NSW):

- Six (6) years for structural defects from the date of completion
- Two (2) years for non-structural defects from the date of completion

11.3 Warranty claims must be made in writing and provide reasonable detail of the alleged defect. Logix Build will inspect the alleged defect within a reasonable timeframe and, if the defect is covered by warranty, rectify it at no additional cost to the Client.

11.4 Warranties do not cover damage caused by the Client, third parties, misuse, lack of maintenance, natural events, structural movement, or normal wear and tear.

12. Limitation of Liability

12.1 To the maximum extent permitted by law, Logix Build's total aggregate liability to the Client for all claims arising out of or in connection with these Terms or any Project Agreement is limited to the total amount paid by the Client under the relevant Project Agreement.

12.2 To the maximum extent permitted by law, Logix Build excludes all liability for:

- Indirect, consequential, special, or punitive damages
- Loss of profit, revenue, business, opportunity, or anticipated savings
- Loss of data or goodwill
- Damages arising from delay where such delay is caused by factors outside Logix Build's reasonable control

12.3 Nothing in these Terms excludes, restricts, or modifies any consumer guarantee, right, or remedy conferred by the Australian Consumer Law (Schedule 2 of the Competition and Consumer Act 2010 (Cth)) or any other applicable law that cannot be excluded, restricted, or modified by agreement.

13. Indemnity

13.1 The Client indemnifies and holds harmless Logix Build, its directors, officers, employees, agents, and subcontractors from and against all claims, demands, losses, damages, costs, and expenses

(including legal costs on a solicitor-client basis) arising out of or in connection with:

- Any breach of these Terms or any Project Agreement by the Client
- Any negligent or wilful act or omission of the Client
- Any claim by a third party arising from the Client's use of the works
- Any failure by the Client to obtain required approvals, consents, or permits
- Any pre-existing site conditions not disclosed by the Client

14. Intellectual Property

14.1 All intellectual property rights in any designs, drawings, plans, specifications, reports, and other documents prepared by Logix Build ("Logix Build IP") remain the exclusive property of Logix Build.

14.2 The Client is granted a non-exclusive, non-transferable licence to use the Logix Build IP solely for the purpose of the project for which it was created.

14.3 The Client must not reproduce, modify, distribute, or use the Logix Build IP for any other purpose without our prior written consent.

15. Confidentiality

15.1 Each party must keep confidential all information of a confidential nature disclosed by the other party in connection with the project, and must not disclose such information to any third party without the prior written consent of the disclosing party.

15.2 This obligation does not apply to information that is publicly available, was already known to the receiving party, is required to be disclosed by law, or is disclosed to professional advisers under a duty of confidentiality.

16. Termination

16.1 Either party may terminate the engagement by providing written notice if the other party commits a material breach of these Terms or any Project Agreement and fails to remedy the breach within fourteen (14) days of receiving written notice of the breach.

16.2 The Client may terminate for convenience by providing thirty (30) days' written notice. In such case, the Client must pay Logix Build for:

- All work completed up to the date of termination
- All materials ordered or delivered
- Reasonable costs of demobilisation
- Loss of profit on the unperformed portion of the works, capped at 10% of the remaining contract value

16.3 Logix Build may terminate immediately if the Client becomes insolvent, enters administration, or is subject to a winding-up order.

17. Dispute Resolution

17.1 Any dispute arising out of or in connection with these Terms must first be referred to the senior management of each party for negotiation in good faith for a period of not less than fourteen (14) days.

17.2 If the dispute is not resolved by negotiation, the parties must submit the dispute to mediation administered by the Australian Disputes Centre (ADC) or such other mediation body as agreed by the parties.

17.3 If the dispute is not resolved by mediation within thirty (30) days of referral, either party may commence legal proceedings.

17.4 For residential building work, the Client may also make a complaint to NSW Fair Trading in accordance with the Home Building Act 1989 (NSW).

17.5 Nothing in this clause prevents either party from seeking urgent interlocutory relief from a court of competent jurisdiction.

18. Force Majeure

18.1 Neither party is liable for any failure or delay in performing its obligations where such failure or delay results from a Force Majeure Event.

18.2 A "Force Majeure Event" means any event beyond the reasonable control of a party, including but not limited to: acts of God, fire, flood, earthquake, storm, pandemic, epidemic, government restrictions, war, terrorism, industrial action, material shortages, supply chain disruptions, and utility failures.

18.3 The affected party must notify the other party as soon as practicable and use reasonable endeavours to mitigate the effect of the Force Majeure Event.

19. Subcontracting

19.1 Logix Build may subcontract any part of the works to qualified and appropriately licensed subcontractors without the Client's prior consent.

19.2 Logix Build remains responsible for the acts and omissions of its subcontractors as if they were its own.

20. Compliance with Laws

20.1 Logix Build will comply with all applicable Commonwealth, State, and local government laws, regulations, codes, and standards in performing the works, including but not limited to:

- Home Building Act 1989 (NSW)
- Environmental Planning and Assessment Act 1979 (NSW)
- Work Health and Safety Act 2011 (NSW)
- Building and Construction Industry Security of Payment Act 1999 (NSW)

- National Construction Code (NCC) / Building Code of Australia (BCA)
- Australian Standards (AS) applicable to the works
- Protection of the Environment Operations Act 1997 (NSW)

21. Notices

21.1 All notices required under these Terms must be in writing and sent by email, registered post, or hand delivery to the addresses specified in the Project Agreement.

21.2 A notice is deemed received: if sent by email, at the time the email is sent (unless the sender receives a delivery failure notification); if sent by registered post, three (3) business days after posting; if hand delivered, at the time of delivery.

22. General Provisions

22.1 **Governing Law.** These Terms are governed by the laws of New South Wales, Australia. Each party submits to the non-exclusive jurisdiction of the courts of New South Wales.

22.2 **Entire Agreement.** These Terms, together with any Project Agreement, constitute the entire agreement between the parties and supersede all prior representations, understandings, and agreements.

22.3 **Severability.** If any provision of these Terms is found to be invalid, illegal, or unenforceable, the remaining provisions continue in full force and effect.

22.4 **Waiver.** A failure or delay by either party to exercise any right under these Terms does not operate as a waiver of that right.

22.5 **Assignment.** The Client must not assign or transfer any rights or obligations under these Terms without Logix Build's prior written consent. Logix Build may assign its rights and obligations to a related body corporate.

22.6 **No Partnership or Agency.** Nothing in these Terms creates a partnership, joint venture, or agency relationship between the parties.

22.7 **Survival.** Clauses 12, 13, 14, 15, and 17 survive termination or expiry of these Terms.

This document was last updated on 13 May 2026. This document does not constitute legal advice. Logix Build recommends that you seek independent legal advice regarding your specific circumstances.